		treatment of an occupational accident and deemed medically necessary. This coverage does not address tort liability. It does not compensate for pain and suffering, emotional distress, lost wages, or any other category of general or non-medical special damages. It is a medical-expense reimbursement benefit, bounded by the policy's own definitions of 'reasonable charges,' 'medically necessary,' and 'occupational accident.' The scope of an arbitration under this policy would therefore be confined to whether medical charges satisfy the policy's internal criteria for reimbursement, an inquiry that has nothing to do with the tort-based liability and damages questions at the heart of the Mobilitas arbitration." (Opp. at p. 4, lines 22 to p. 5, line 3.) Unfortunately, much like the moving papers, the opposition does not cite the court to the arbitration provision or the other relevant terms of the policy. In the reply, Petitioner argues the issues under US Fire's policy whether the charges for the treatments received are reasonable and medically necessary overlap with the medical causation, treatment necessity, and damages determinations to be made in the uninsured motorist arbitration. (Reply at p. 3, lines 19-23.) The reply, however, goes on to argue the definitions of medically necessary in US Fire's policy inappropriately reserved that determination to its own standards and medical personnel. Indeed, the reply argues consolidation should be ordered to "prevent [US Fire] from relying upon unilateral determinations of medical necessity and reasonableness to fragment or delay adjudication." That is not an appropriate basis for determining whether the common issue condition is satisfied. Petitioner simply has not shown either the liability issues or the damages issues in the two arbitrations are the same or otherwise give rise to a rise of conflicting rulings. Whether the uninsured driver is liable is different than whether Petitioner was injured in an occupational accident. Moreover, the issues regarding the tort damages potentially recoverable in the uninsured motorist arbitration do not appear to be the same as the much narrower damages issues presented in the arbitration under US Fire's policy. Based on the foregoing, the motion is **DENIED**. US Fire's counsel is ordered to give notice of this ruling.
7.	***Tran vs. City of Fountain Valley*** *2026-01569494*	Before the court is the petition by petitioner James Tran (Petitioner) for relief from the government claims

		presentation requirement. As more fully set forth below, the petition is **DENIED**. Initially, the court notes there is no valid proof of service showing the petition was served on respondents City of Fountain Valley and Fountain Valley Police Department (collectively, Respondents). The proof of service filed May 11, 2026 (ROA 6) fails to identify what, if any documents were served, and the proof of service is not signed. Further, Petitioner failed to file any notice of hearing regarding the petition, and therefore also presumably failed to serve any such notice. The proof of service attached to Petitioner's "Trial Brief" does not cure these deficiencies because it does not identify the petition as being served or any notice of hearing. Regardless of any service deficiencies, the petition fails to satisfy the statutory requirements of Government Code section 946.6, subdivision (b). That statute requires any petition submitted to the court seeking relief from an untimely claim under the Government Claims Act must show "(1) That application was made to the board under Section 911.4 and was denied or deemed denied. [¶] (2) The reason for failure to present the claim within the time limit specified in Section 911.2. [¶] (3) The information required by Section 910." Government Code section 910 states as follows: \\ "A claim shall be presented by the claimant or by a person acting on his or her behalf and shall show all of the following: "(a) The name and post office address of the claimant. "(b) The post office address to which the person presenting the claim desires notices to be sent. "(c) The date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted. "(d) A general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim. "(e) The name or names of the public employee or employees causing the injury, damage, or loss, if known. "(f) The amount claimed if it totals less than ten thousand dollars ($10,000) as of the date of presentation of the

claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars ($10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case."

Here, Petitioner fails to provide much of this information. Petitioner does not provide a copy of the claim submitted to Respondents and the petition does not clearly describe the "damage or loss incurred so far as it may be known at the time of presentation of the claim." The petition also does not identify the persons involved or whether such is known. Further, the petition does not address damages, if known, or whether this would be a limited civil case.

Moreover, Petitioner has failed to submit sufficient evidence establishing mistake or excusable neglect. Government Code section 946.6(c) provides, "The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable: (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4."

"The showing required of a petitioner seeking relief under the authority of Government Code, section 946.6 on the grounds of mistake, inadvertence, surprise or excusable neglect is the same as required under section 473 of the Code of Civil Procedure for relieving a party from a default judgment." (*Flores v. Bd. of Supervisors* (1970) 13 Cal.App.3d 480, 483.)

The purported "mistake" made by Petitioner is that he was not sure when his claim accrued. (Petition ¶¶18-23.) Lack of knowledge of the law is not a sufficient basis for relief. Litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys.

		(*Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties].) A cause of action accrues when the injury occurs. Petitioner asserts in his petition that he believed the cause of action arising from the seizing of his dog on September 16, 2025, did not accrue on the day the dog was seized because there were "continuing administrative hearings." (Petition at p. 3, line 9.) But he concedes his injuries began on that day and any injuries relating to the administrative proceedings were "additional" injuries. (Petition at p. 2, line 14.) Petitioner also concedes the administrative proceedings were conducted by Orange County Animal Care, not Respondents. Government Code section 901 states, "For the purpose of computing the time limits prescribed by Sections 911.2, 911.4, 945.6, and 946.6, the date of the accrual of a cause of action to which a claim relates is the date upon which the cause of action would be deemed to have accrued within the meaning of the statute of limitations which would be applicable thereto if there were no requirement that a claim be presented to and be acted upon by the public entity before an action could be commenced thereon." "For purposes of calculating these time limits, the date on which an action accrues is the date upon which it would be deemed to have accrued under the applicable statute of limitations. (Gov. Code, § 901.) As a general rule, the date of accrual is the date the plaintiff incurred injury as a result of the defendant's alleged wrongful act or omission. (*Loehr v. Ventura Cnty. Cmty. Coll. Dist.* (1983) 147 Cal.App.3d 1071, 1078.) As Petitioner alleges he was harmed on the day his dog was seized, the claims arising therefrom occurred on the day the dog was seized. As a result, Tran's claim accrued on September 26, 2025. He therefore did not timely present the claim to the respondents and he has not established the failure to timely present the claim was through mistake, inadvertence, surprise or excusable neglect. Based on the foregoing, the petition is **DENIED**. Respondents' counsel is ordered to give notice of this ruling.
8.	***Emerald Bay Community Association vs. Kinstler***	Before the court is the motion to enforce settlement pursuant to Code of Civil Procedure section 664.6 filed by intervenor Igor Olenicoff as Trustee of the Olenicoff Personal Residence Trust (Olenicoff). Olenicoff seeks to

	2017-00923112	enforce the January 2019 written settlement agreement (Settlement Agreement) entered into between Olenicoff, plaintiff Emerald Bay Community Association (Association), and defendants Charles Kinstler, Jr. and Lynda Kinstler, as Trustees of the Kinstler Living Trust dated 9/6/1991 (collectively, Kinstlers). For the reasons set forth below, the motion is **DENIED**. Initially, the court notes Olenicoff and the Association filed two versions of multiple documents relating to the motion—i.e., a public version with redactions, and a purportedly lodged, unredacted version of each document conditionally under seal pursuant to California Rules of Court 2.551(b)(3). Specifically, Olenicoff filed two versions of the motion (ROA 194, 202), a declaration by Olenicoff (ROA 195, 203), a declaration by attorney Ault (ROA 196, 204), and the reply (ROA 226, 228). Olenicoff also submitted a conditionally sealed proposed judgment (ROA 205). The Association filed two versions of its opposition (ROA 213, 217) and evidentiary objections (ROA 215, 218). No documents may be filed under seal without a court order. (Cal. Rules Ct., rule 2.551(a).) In general, any party seeking to file a document under seal must make a motion or application to seal the document. However, when the document sought to be sealed is subject to a protective order or confidentiality agreement, a party may conditionally lodge a document and put the onus on any other party who may want the document sealed to seek a court order to seal the document. (Cal. Rules Ct., rule 2.551(b)(3).) That is what both Olenicoff and the Association have done here. Rule 2.551(b)(3)(B) requires any party who may want the document sealed to bring a motion to seal within 10 days of notice of the document being submitted. Here, the foregoing documents were filed between June 5, 2026, and August 20, 2025. The court has not received any motion to seal from any interested party. **<u>Accordingly, the court will hear from all interested parties at the hearing, but unless some legal and good cause is established at the time of the hearing, the court will order the redacted copies struck and the unredacted copies filed in the public register of actions.</u>** On the merits, Code of Civil procedure section 664.6 provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case,

		or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6.) "A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard." (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 [internal citations omitted].) "Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment (Citation), nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon." (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.) Olenicoff failed to show he may enforce the Settlement Agreement pursuant to Code of Civil Procedure section 664.6. The February 2019 Stipulated Judgment entered in this matter resolved the entirety of the parties' disputes in this action and thus disposed of the action. The court's jurisdiction over this matter therefore terminated at that time. (See *Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 437 ["When a court has jurisdiction over the parties and subject matter of a suit, its jurisdiction continues until a final judgment is entered."]; *Casa de Valley View Owner's Assn. v. Stevenson* (1985) 167 Cal.App.3d 1182, 1191 [same].) As such, unless the parties requested the court retain jurisdiction under section 664.6, the court would not have jurisdiction to hear this motion. The Stipulated Judgment itself contains no mention of section 664.6. Moreover, although the notice of settlement filed by the Association referred to a motion under section 664.6, no such motion was ever filed. Olenicoff relies on sections 5.1 and 7.7 of the Settlement Agreement, but neither of these sections ask the court to retain jurisdiction under section 664.6. Section 5.1 simply states the Association will file a noticed motion pursuant to section 664.6 to have the court enter judgment in conformity with the Stipulated Judgment, but again that

		motion was never filed. The Association ultimately only filed a "Request for Entry of Judgment Pursuant to Stipulation" which made no mention of section 664.6. (See ROA 180.) Section 7.7 of the Settlement Agreement states, "The Parties agree that this [sic] Agreements and obligations are enforceable under Code of Civil Procedure section 664.6." This language acknowledges the parties ability to seek to have the court enforce the settlement agreement, but it does not in any way request the court to retain jurisdiction to enforce the Settlement Agreement after judgment or a dismissal is entered. Indeed, this language is not a clear request for retention of jurisdiction under section 664.6. (See *Weddington Productions, Inc. v. Flick*, *supra*, 60 Cal.App.4th at pp. 800-801 [language stating "'All parties agree this settlement is enforceable under CCP 664.6' . . . [¶] has little significance since any settlement agreement memorialized in a signed writing is enforceable pursuant to section 664.6, whether the agreement expressly so states or not"]; *Wackeen v. Malis*, *supra*, 97 Cal.App.4th at p. 440 [a request for retention of jurisdiction "must be express, not implied from other language, and it must be clear and unambiguous"].) Assuming for the sake of argument that the court has jurisdiction to enforce the Settlement Agreement pursuant to section 664.6, the Settlement Agreement does not explicitly require the Association and the Kinstlers to maintain the ficus trees in front of the Kinstlers' property at 15 feet or lower, as Olenicoff contends. Section 2.1 of the Settlement Agreement, cited by Olenicoff, sets forth requirements to be included in the Kinstlers' preliminary remodeling plans. Section 2.1 does not expressly impose any ongoing requirement that the Association or the Kinstlers are to maintain the ficus trees at 15 feet or lower. Nor does the Settlement Agreement contain any provision specifying the remedy for any alleged breach of section 2.1. Additionally, Olenicoff seeks to have the height of the ficus trees measured in reference to the 1960 Topographical Survey referenced in a preceding paragraph of section 2.1, rather than measured "by the furthest uphill tree to the left of the Kinstlers' driveway" as stated in the provision regarding the ficus trees. Olenicoff's motion thus improperly asks the court to essentially rewrite the Settlement Agreement. Olenicoff also points to the Grant of Easement which is referenced in section 2.1 of the Settlement Agreement. Although the Grant of Easement may create an obligation for the Kinstlers to maintain the ficus trees at a 15-foot

		maximum, here, Olenicoff seeks to enforce the Settlement Agreement which contains no such express obligation. Based on the foregoing, the motion is **DENIED**. The Association's and the Kinstlers' requests for judicial notice are **GRANTED** as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (d); *Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.) The Association's evidentiary objections are **OVERRULED**. Counsel for the Association is ordered to give notice of this ruling.
9.	***Parkhouse Residences, LLC v. Allies Ornamental Iron Works, Inc.*** *2026-01585016*	**OFF CALENDAR** based on request for dismissal filed on August 11, 2026
10.	***Fernhill Owners Community Association No. 1 vs. Garra*** *2019-01069232*	Before the court is an Order to Show Cause Re: Sale of Dwelling issued by this court on June 22, 2026, regarding the property located at 14671 Van Buren Street, Midway City, California 92655 (Property). The Order to Show Cause was issued pursuant to the application of plaintiff and judgment creditor Fernhill Owners Community Association No. 1 (Judgment Creditor) for an order to sell the interest of defendants and judgment debtors Terese Helene Garra and Terese Helene Garra, as Trustee of the Terese Helene Garra Trust (5/24/19) (collectively, Judgment Debtor) in the Property to satisfy the judgment entered in this case. Judgment Creditor presented evidence showing there is currently no homeowner's exemption or disabled veteran's exemption for the Property. (Speights Decl., ¶¶ 10-12; Exh. G.) Judgment Creditor also presented evidence showing Judgment Debtor resides elsewhere and the Property is a rental property. (Speights Decl., ¶¶ 9, 20; Exh. F.) As such, the Property is not subject to a homestead exemption. (See Code Civ. Proc., § 704.710(c).) Notice of the Order to Show Cause was duly given but no response has been filed with the court. Judgment Debtor